

CYB 260 Module Three Worksheet

Complete the table below by filling in the three columns for each law. Replace the bracketed text with the relevant information.

Law	Briefly describe the law.	Whose rights are covered by the law?	Who in an organization is responsible for ensuring compliance with the law?
Red Flags Rule	Issued by the FTC as part of FACTA. It requires certain businesses and organizations to develop and implement written identity theft prevention programs, which must be designed to detect warning signs or "red flags" of identity theft in their day-to-day operations.	Any consumer who patronizes a financial institution or a business that regularly extends credit to customers.	The Compliance Officer, Chief Risk Officer, or other designated senior staff responsible for fraud prevention or customer account security typically oversee Red Flags Rule compliance.
Payment Card Industry Standards	Requires businesses that handle credit or debit card payments to follow a set of security standards, such as maintaining secure systems and networks and restricting access to sensitive data, to protect cardholder data. They must also document their security policies and complete regular audits depending on their transaction volume.	Any person who uses or holds a credit, debit, or other payment card covered under PCI.	Typically, the CISO, IT Security Manager, or Compliance Officer is responsible for ensuring PCI compliance, though the CFO may also be involved in oversight and resource planning.

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Children's Online Privacy Protection Act (COPPA)	Requires any online service, site, or app that is either directed at children under 13 or knowingly collects data from them to get verifiable parental consent. It also requires clear privacy policies and parental access to the data collected.	Protects children's privacy by granting parents specific rights to control the online collection and use of their child's personal data.	Someone within the organization, most often a Compliance Officer, Privacy Officer, or legal staff, is responsible for ensuring the company follows COPPA requirements.
Children's Internet Protection Act (CIPA)	Requires libraries and K-12 public schools to block or filter access to obscene or harmful content. It also requires education on appropriate online behavior, including cyberbullying awareness and digital citizenship.	CIPA protects the rights of children directly and also supports the rights of parents by giving them assurance of safe internet use in public institutions. It may also provide some legal protection to schools and libraries that follow its requirements properly.	In most cases, a Compliance or Privacy Officer ensures CIPA compliance, but in smaller institutions, this responsibility often falls to IT staff or school and library administrators who manage internet policies and certify funding eligibility.
Federal Information Security Management Act (FISMA)	Requires federal agencies and contractors to have a documented information security program. It focuses on risk management, regular assessments, system monitoring, incident response, and compliance with standards set by NIST.	Protects the interests of the federal government and, by extension, the privacy and security of individuals whose data is stored or processed by federal systems or contractors.	The CISO is primarily responsible for FISMA compliance, with support from Compliance or Privacy Officers for oversight and from IT staff for technical implementation.

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State Data Breach Notification Laws	Requires businesses and some government entities to notify affected individuals when their personal information is exposed due to a security breach. The definition of “personal information” and the exact time frame for notification vary by state.	Primarily cover the rights of consumers.	If available, responsibility falls to a compliance or privacy officer. Otherwise, responsibility typically falls to the General Counsel, CISO, or a senior leader like the CEO.
U.S. Constitution	While The U.S. Constitution does not explicitly mention a right to privacy, , it provides the foundation for many privacy-related protections that influence cybersecurity laws. The Fourth Amendment, in particular, has been used to shape legal boundaries around digital surveillance, data searches, and protections against unauthorized access to personal information.	The U.S. Constitution protects the rights of U.S. citizens.	Senior leadership, especially the CEO, General Counsel, and CISO, are responsible for ensuring that the organization’s cybersecurity and privacy practices align with constitutional protections.